UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF LOUISIANA

Charles Eddie Buckles, individually and on behalf of all others similarly situated,

Plaintiff,

v.

IDScan.net, Inc.

Defendant.

Charles Eddie Buckles, individually and on behalf of all others similarly situated,

Plaintiff,

v.

IDScan.net, Inc.

Defendant.

CIVIL ACTION NO. _____
SECTION: _____
JUDGE _____
MAGISTRATE JUDGE _____

Case No.

CLASS ACTION COMPLAINT

JURY TRIAL DEMANDED

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Plaintiff Charles Eddie Buckles ("Plaintiff"), individually and on behalf of all others similarly situated, asserts the following against Defendant IDScan.net, Inc. based on personal knowledge, where applicable, information and belief, and the investigation of counsel.

INTRODUCTION

1. This action arises out of the unauthorized disclosure and exposure of the confidential, personal information of Plaintiff and Class Members, including but not limited to names, driver's license numbers, government-issued identification numbers, and medical information, held by Defendant IDScan.net ("IDScan" or "Defendant"). The Data Breach was publicly reported on or about September 2, 2026, following the discovery that more than 153 million driver's license records were being sold on a dark web service.

2. Defendant, a Louisiana-based identity verification company that serves major Fortune 500 entities, failed to adequately safeguard the Private Information entrusted to it. As a result of Defendant's collective failures to implement reasonable security measures, the Private Information of Plaintiff and Class Members was compromised and is now in the hands of criminals. The exposed data includes highly sensitive information such as driver's license numbers and medical information, which are being exploited to facilitate identity theft, financial fraud, and the creation of fake identities.

3. Plaintiff brings this action individually and on behalf of a Nationwide Class of similarly situated individuals against Defendant for negligence, negligence per se, unjust enrichment, and breach of implied contract. Plaintiff seeks actual and putative damages, attorneys' fees, costs, and expenses, as well as appropriate injunctive and declaratory relief.

criminals. The exposed data includes highly sensitive information such as driver's license numbers and medical information, which are being exploited to facilitate identity theft, financial fraud, and the creation of fake identities.

4. Plaintiff and Class Members seek to remedy these harms and prevent any future data compromise on behalf of themselves and all similarly situated persons whose personal data was compromised and stolen as a result of the Data Breach and who remain at risk due to Defendant's inadequate data security practices. Specifically, Plaintiff seeks (a) disclosure of the full nature of the Data Breach and types of Private Information exposed; (b) the implementation of data security practices to reasonably guard against future breaches; and (c) the provision, at Defendant's expense, of lifetime identity theft protection services to all Data Breach victims.

3. Plaintiff brings this action individually and on behalf of a Nationwide Class of similarly situated individuals against Defendant for negligence, negligence per se, unjust enrichment, and breach of implied contract. Plaintiff seeks actual and putative damages, attorneys' fees, costs, and expenses, as well as appropriate injunctive and declaratory relief.

PARTIES

5. Plaintiff, individually and on behalf of all others similarly situated, is a natural person domiciled in the State of Louisiana. Plaintiff is a customer of multiple businesses who use IDScan.net to check and verify identities, and he provided his personal information to Defendant for identity verification purposes.

4. Plaintiff and Class Members seek to remedy these harms and prevent any future data compromise on behalf of themselves and all similarly situated persons whose personal data was compromised and stolen as a result of the Data Breach and who remain at risk due to Defendant's inadequate data security practices. Specifically, Plaintiff seeks (a) disclosure of the full nature of the Data Breach and types of Private Information exposed; (b) the implementation of data security practices to reasonably guard against future breaches; and (c) the provision, at Defendant's expense, of lifetime identity theft protection services to all Data Breach victims.

6. Defendant IDScan is a corporation organized and existing under the laws of Delaware, with its principal place of business located at 2045 Lakeshore Drive, Suite 526, New Orleans, LA 70122. Defendant is an identity verification company that processes personal information for numerous clients, including Fortune 500 companies.

JURISDICTION AND VENUE

7. This Court has subject matter jurisdiction over this action pursuant to the Class Action Fairness Act, 28 U.S.C. § 1332(d)(2).

PARTIES

5. Plaintiff, individually and on behalf of all others similarly situated, is a natural person domiciled in the State of Louisiana. Plaintiff is a customer of multiple businesses who use IDScan.net to check and verify identities, and he provided his personal information to Defendant for identity verification purposes.

8. The amount in controversy exceeds $5,000,000, exclusive of interest and costs. The breach exposed more than 153 million driver's license records, and the potential damages for the Class Members, including costs for credit monitoring, identity theft mitigation, and statutory penalties, easily exceed the jurisdictional threshold.

9. Minimal diversity of citizenship exists under 28 U.S.C. § 1332(d)(2)(A). The Defendant, IDScan, is a citizen of Louisiana. The proposed Class includes members from various states other than Louisiana state of citizenship.

6. Defendant IDScan is a corporation organized and existing under the laws of Delaware, with its principal place of business located at 2045 Lakeshore Drive, Suite 526, New Orleans, LA 70122. Defendant is an identity verification company that processes personal information for numerous clients, including Fortune 500 companies.

10. The Court has general personal jurisdiction over the Defendant because the Defendant operates, conducts, engages in, and/or carries on a business in this State. The Defendant is a Louisiana-based identity verification company. The Defendant committed tortious and otherwise wrongful acts in Louisiana by failing to safeguard the personal information of Louisiana residents and allowing the exposure of millions of driver's license records.

11. The Court has personal jurisdiction over the Defendant because the Defendant is based in this District, and the acts and omissions giving rise to the Plaintiff's and Class Members' claims occurred in and emanated from this District.

FACTUAL BACKGROUND

12. Defendant IDScan, a Louisiana-based identity verification company, serves as a custodian of sensitive personal information for numerous Fortune 500 companies and other clients.

13. On or about September 2, 2026, a data breach occurred involving Defendant's systems, resulting in the unauthorized access and exposure of more than 153 million driver's license records.

14. The breach was first reported by investigative reporter and cybersecurity expert Brian Krebs, who identified compromised driver's license records being offered for sale on a dark web service known as Nexus.

15. The records exposed in the Data Breach include, but are not limited to, driver's license numbers, government-issued identification numbers, and medical information.

16. The compromised data is now being sold on the dark web, a heavily encrypted portion of the Internet not accessible via traditional search engines, where cybercriminals can conceal their identities and online activity.

17. The exposure of this specific category of Private Information creates a substantial risk of identity theft, as such data is frequently used to commit financial crimes, create fake identification documents, and open fraudulent accounts.

18. Upon information and belief, the breach was the result of a vendor attack, wherein cybercriminals infiltrated Defendant's internal network and exfiltrated data stored on that network.

19. Defendant failed to adequately safeguard the Private Information of the Plaintiff and the proposed Class Members, despite knowing or should have known that such data would be a target of cyberattacks.

A. Criminal-Market Value of Compromised Data

20. As a direct result of the Data Breach, Plaintiff and Class Members face an imminent and substantial risk of identity theft, including the potential for unauthorized use of their

18. The Defendant's inadequate security practices resulted in a data breach exposing more than 153 million driver's license records, which are now being actively sold on the dark web.

B. Continuing Exposure and Misuse Risks

27. Plaintiff and Class Members face a substantial and imminent risk of identity theft, financial fraud, and the creation of counterfeit identification documents due to the continuing exposure of their sensitive data. The unauthorized access and subsequent sale of driver's license records on the dark web create a persistent threat that allows bad actors to assume the identities of affected individuals for illicit purposes.

28. This risk is compounded by the persistence and replication of the compromised data, which remains available for resale and redistribution indefinitely. The dark web service involved has confirmed the availability of over 153 million driver's license records and 20 million additional records, ensuring that the stolen information is widely disseminated and accessible to criminal networks for years to come.

29. The specific categories of private information exposed, including driver's license numbers, government-issued identification details, and medical information, are uniquely suited for high-value identity fraud. Unlike less sensitive data, these records provide the comprehensive verification credentials necessary to bypass security protocols, open new financial accounts, and obtain government benefits in the names of Plaintiff and Class Members.

30. Consequently, Plaintiff and Class Members have incurred and will continue to incur significant out-of-pocket costs and time burdens to monitor their financial accounts, place credit freezes, and dispute fraudulent activity. These mitigation efforts are necessary to detect and prevent the misuse of their exposed data, yet the ongoing availability of their information on the dark web means the risk of future fraud and the need for vigilance will persist for an indefinite period.

CLASS ALLEGATIONS

23. Plaintiff brings this lawsuit under Federal Rules of Civil Procedure 23(a), (b)(1), (b)(2), and (b)(3), and/or (c)(4) as representatives of the following classes:

Nationwide Class: All individuals whose personally identifiable information was compromised in or as a result of the data breach that occurred on or about September 2, 2026.

Louisiana Subclass: All natural persons residing in Louisiana whose personally identifiable information was compromised in or as a result of the data breach that occurred on or about September 2, 2026.

24. Numerosity. The Class is so numerous that joinder of all members is impracticable. Based on the scale of the breach, which exposed more than 153 million driver's license records and 20 million other records, the Class consists of at least hundreds of thousands, and likely millions, of

millions, of individuals. The exact number of Class Members is unknown to Plaintiff at this time but is ascertainable through Defendant's records.

40. ***Commonality.*** There are questions of law and fact common to the Class which predominate over any questions affecting only individual Class Members. These common questions include, without limitation: whether Defendant failed to implement and maintain reasonable security procedures and practices appropriate to the nature and scope of the Private Information compromised in the Data Breach; whether Defendant's data security systems prior to and during the Data Breach complied with applicable data security laws and regulations; whether Defendant's data security systems prior to and during the Data Breach were consistent with industry standards; whether Defendant owed a duty to Class Members to safeguard their Private Information; whether Defendant breached its duty to Class Members to safeguard their Private Information; whether computer hackers obtained Class Members' Private Information in the Data Breach; whether Defendant knew or should have known that its data security systems and monitoring processes were deficient; whether Defendant failed to provide notice of the Data Breach in a timely manner; and whether Class Members suffered legally cognizable damages as a result of Defendant's misconduct.

41. ***Typicality.*** Plaintiff's claims are typical of those of other Class Members because Plaintiff's Private Information, like that of every other Class Member, was compromised in the Data Breach. Plaintiff, like all Class Members, was injured by Defendant's uniform misconduct in failing to secure sensitive driver's license and medical data. Plaintiff is advancing the same claims and legal theories on behalf of himself and all other Class Members, and there are no defenses that are unique to Plaintiff. The claims of Plaintiff and those of other Class Members arise from the same operative facts and are based on the same legal theories.

42. ***Adequacy of Representation.*** Plaintiff will fairly and adequately represent and protect the interests of the Class in that they have no disabling conflicts of interest that would be antagonistic to those of the other members of the Class. The damages and infringement of rights Plaintiff suffered are typical of other Class Members, and Plaintiff seeks no relief that is antagonistic or adverse to the

42. ***Adequacy of Representation.*** Plaintiff will fairly and adequately represent and protect the interests of the Class in that they have no disabling conflicts of interest that would be antagonistic to those of the other members of the Class. The damages and infringement of rights Plaintiff suffered are typical of other Class Members, and Plaintiff seeks no relief that is antagonistic or adverse to the members of the Class. Plaintiff has retained counsel experienced in complex consumer class action litigation, including data breach litigation, and Plaintiff intends to prosecute this action vigorously.

43. ***Predominance.*** Common questions of law and fact exist as to all members of the Class and predominate over questions affecting only individual members of the Class. The Class was created by a single, uniform event: the unauthorized access and exfiltration of millions of records from Defendant's centralized systems. The common issues arising from Defendant's conduct affecting Class Members set out above predominate over any individualized issues. Adjudication of these common issues in a single action has important and desirable advantages of judicial economy.

44. ***Superiority.*** A class action is superior to other available methods for the fair and efficient adjudication of this controversy and no unusual difficulties are likely to be encountered in the management of this class action. Class treatment of common questions of law and fact is superior to multiple individual actions or piecemeal litigation. Absent a Class action, most Class Members would likely find that the cost of litigating their individual claims is prohibitively high and would therefore have no effective remedy. The prosecution of separate actions by individual Class Members would create a risk of inconsistent or varying adjudications with respect to individual Class Members, which would establish incompatible standards of conduct for Defendant. In contrast, conducting this action as a class action presents far fewer management difficulties, conserves judicial resources and the parties' resources, and protects the rights of each Class Member.

TOLLING OF THE STATUTES OF LIMITATIONS

30. Any applicable statute of limitations has been tolled by the "delayed discovery" rule. Plaintiff did not know, and had no reasonable way of knowing, that their Private Information, including driver's license numbers, government identifiers, and medical information, was intercepted and unlawfully disclosed to third parties because Defendant kept this information secret.

31. Defendant maintained exclusive knowledge of the breach and the exposure of over 153 million records. Defendant failed to disclose that its systems were compromised or that the data was being sold on the dark web until the breach was publicly reported by investigative reporter Brian Krebs on September 2, 2026.

49. For these reasons, all applicable statutes of limitation have been tolled based on the delayed discovery rule, and Defendant is estopped from relying on any statutes of limitations in defense of this action.

CLAIMS FOR RELIEF

FIRST CLAIM FOR RELIEF
Negligence

50. Plaintiff alleges that Defendant owed Plaintiff a duty of care to implement and maintain reasonable security procedures and practices appropriate to the nature of the personal information it collected, maintained, and processed, including driver's license numbers, government identification numbers, and medical information.

51. Defendant breached this duty of care by failing to exercise reasonable care in supervising its agents, contractors, vendors, and suppliers, and in handling and securing the personal information of Plaintiff. Specifically, Defendant failed to implement adequate technical and organizational safeguards to protect the computerized data it maintained, resulting in the unauthorized acquisition and disclosure of more than 153 million driver's license records.

52. Defendant's negligence was the actual and proximate cause of the Data Breach, which exposed Plaintiff's sensitive personal information, including driver's license numbers, government IDs, and medical information, to unauthorized third parties. The compromised data has been confirmed to be available for sale on the dark web, creating an immediate and ongoing risk of identity theft and fraud.

53. As a direct and traceable result of Defendant's negligence, Plaintiff have suffered and will continue to suffer damages, including the increased risk of future identity theft, the cost

and time incurred to monitor their credit and mitigate the effects of the breach, and the loss of the benefit of their bargain regarding the security of their personal information.

38. As a direct and traceable result of Defendant's negligence, Plaintiff have suffered and will continue to suffer damages, including the increased risk of future identity theft, the cost and time incurred to monitor their credit and mitigate the effects of the breach, and the loss of the benefit of their bargain regarding the security of their personal information.

39. Plaintiff seeks judgment against Defendant for all damages sustained as a result of Defendant's negligence, including compensatory damages for out-of-pocket losses, costs of credit monitoring, and any other relief deemed just and proper by the Court.

SECOND CLAIM FOR RELIEF

Negligence Per Se

40. Plaintiff incorporates by reference all preceding paragraphs as if fully set forth herein.

Negligence Per Se

41. This Count is brought for Negligence Per Se based on Defendant's violation of specific statutory duties governing the security of personal information and the notification of data breaches.

42. The governing statute is La. R.S. § 51:3071 et seq., which imposes a duty on persons conducting business in Louisiana to implement and maintain reasonable security procedures and practices to protect personal information from unauthorized access, destruction, use, modification, or disclosure.

43. Defendant, IDScan, is a person conducting business in the State of Louisiana and maintains computerized data containing personal information that it does not own, thereby triggering the statutory duties under the identified governing statute.

44. Defendant breached its statutory duty to implement and maintain reasonable security procedures and practices by failing to protect the personal information of Plaintiff and Class members, resulting in a data breach that exposed more than 153 million driver's license records, including driver's license numbers, personal information, and other sensitive data.

45. Plaintiff and Class members have suffered damages as a direct and proximate result of Defendant's violation of its statutory duties, including the increased risk of identity theft, the cost of credit monitoring, and the loss of the benefit of their bargain regarding the security of their personal information.

46. Plaintiff seeks judgment against Defendant for all damages sustained as a result of Defendant's violation of its statutory duties, including compensatory damages for out-of-pocket losses, costs of credit monitoring, and any other relief deemed just and proper by the Court.

SECOND CLAIM FOR RELIEF

Negligence Per Se

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Negligence Per Se

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50. Defendant, IDScan, is a person conducting business in the State of Louisiana and maintains computerized data containing personal information that it does not own, thereby triggering the statutory duties under the identified governing statute.

51. Defendant breached its statutory duty to implement and maintain reasonable security procedures and practices by failing to protect the personal information of Plaintiff and Class members, resulting in a data breach that exposed more than 153 million driver's license

records, including driver's license numbers, government IDs, and medical information, which were subsequently sold on the dark web.

60. Defendant breached its statutory duty to provide timely notice of the data breach to Plaintiff and Class members as required by the identified governing statute, as the breach was reported on September 2, 2026, and Plaintiff were not provided with reasonably timely notice of the unauthorized acquisition of their personal information.

61. La. R.S. § 51:3071 et seq. was enacted to prevent the specific type of harm suffered by Plaintiff, namely identity theft and financial fraud resulting from the unauthorized disclosure of sensitive personal information such as driver's license numbers and medical data.

62. Defendant's breach of the statutory duties delineated in the identified governing statute actually and proximately caused the Data Breach and the resulting injury to Plaintiff, including the theft of their personal information, the increased risk of future identity theft, and the necessity to incur costs to mitigate the effects of the breach.

63. As a direct and traceable result of Defendant's negligence per se, Plaintiff have suffered actual damages, including the loss of the benefit of their bargain, the loss of value of their personal information, and the time and money incurred to monitor and remediate the effects of the Data Breach, which damages are ongoing and imminent.

64. Defendant's violation of the identified governing statute constitutes negligence per se, entitling Plaintiff to recover actual damages, statutory damages where applicable, and equitable relief as provided by law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, individually and on behalf of all others similarly situated, respectfully requests that the Court:

A. Certify this case as a class action, and appoint Plaintiff as Class Representative and the undersigned attorneys as Class Counsel;

B. Enter judgment in favor of Plaintiff and the Class;

C. Enter injunctive and/or declaratory relief as is necessary to protect the interests of Plaintiff and Class members, including reformation of practices and an accounting and purging of wrongfully obtained personal information;

H. Award Plaintiff and Class members reasonable litigation expenses and attorneys' fees as permitted by law; and

I. Award such other and further relief as the Court deems necessary and appropriate.

DEMAND FOR JURY TRIAL

Pursuant to Federal Rule of Civil Procedure 38(b), Plaintiff demands a trial by jury of all issues triable as of right.

Dated: September 4, 2026

Respectfully submitted,

/s/ J. Greg Murphy
J. Greg Murphy
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